

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING CHAPTERS 10.12, ADMINISTRATION AND ENFORCEMENT, 10.16, ARREST AND CITATION PROCEDURE, 10.52, STOPPING, STANDING AND PARKING GENERALLY, 10.60, PARKING LIMITATIONS, 10.64, LOADING AND UNLOADING, WITHIN TITLE 10, VEHICLES AND TRAFFIC, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various sections of Chapter 10.12, Administration and Enforcement, of Title 10, Vehicles and Traffic, are hereby amended as set out in this ordinance. Sections currently existing in Chapter 10.12 not set out within this ordinance remain unchanged.

10.12.160 Authority to impound illegally parked vehicles.

A. Any vehicle found parked in any unauthorized place or in violation of this code or any other city ordinance or any vehicle ~~to which was immobilized pursuant to Section 10.12.170(B)(3) and has not been released within three (3) business days has been attached or against which has been issued five or more tickets for illegal, improper or overtime parking, which tickets remain unpaid;~~ may be towed to any garage in the city. The owner of the vehicle shall pay all **reasonable** charges of towing and storage incurred in addition to any penalties imposed for violation of this code or any other city ordinance.

10.12.170 Immobilization ~~Use of boots.~~

A. Definition. For the purposes of this section, the word ~~"boot"~~ **"immobilize" or "immobilization"** means and includes **the use of** any device which may be attached or affixed to a vehicle and when so attached or affixed shall render the vehicle immovable.

B. **Scofflaw List. As frequently as practicable, the police department parking administration manager shall prepare and update the "scofflaw list," consisting of vehicles with three (3) default judgments as a result of unpaid parking citations.**

1. Notice that a vehicle is listed on the scofflaw list shall be served in the following manner:

a. The police department parking administration manager shall give notice by first class mail to the registered owner of each vehicle listed on the scofflaw list, stating that the vehicle is listed on the scofflaw list.

2. The content of the notice that a vehicle is listed on the scofflaw list shall contain not less than the following information:

a. The date and the nature of each ticket overdue and the amount due on each;

- b. The date of entry of default judgement on each;
- c. That a scofflaw list fee of five dollars (\$5.00) is imposed to cover administrative costs;
- d. The total amount currently due;
- e. That the owner shall, no less than fifteen (15) days after the date of mailing, respond to the notice by paying the total amount due;
- f. That if the vehicle owner fails to respond within the prescribed time period, the listed vehicle will be subject to immediate immobilization; and
- g. That if the vehicle is impounded pursuant to Section 10.12.160, the owner will also be responsible for the reasonable costs of towing and storage.

3. A vehicle remaining on the scofflaw list after the date indicated in the notice issued pursuant to Section 10.12.170(B)(2)(f) is subject to be immobilized by the chief of police or his designee while that vehicle is located upon any public property. The person immobilizing the vehicle shall leave under the windshield wiper or otherwise attach to the vehicle a notice advising the owner that the vehicle has been immobilized by the City for failure to pay amounts due for three or more adjudicated parking infractions; that release from immobilization may be obtained by paying all outstanding fines and late fees owed relating to all adjudicated violations, plus all removal, towing, and storage charges and administrative fees; that unless such payment is made within five (5) business days of the date of the notice, the vehicle will be impounded; that it is unlawful for any person to remove or attempt to remove the immobilization device, to damage the immobilization device, or to move the vehicle with the immobilization device attached, unless authorized by the chief of police or an authorized agent of the City; and that the owner may seek an administrative review of the immobilization by submitting a request to the police department parking administration manager within ten days of the release of the immobilization device.

4. If the owner or an agent of the owner pays the fines and fees, if any, and all towing and storage charges, if any, the police department parking administration manager shall remove such vehicle from the scofflaw list and authorize its release from immobilization the next business day.

5. If a vehicle immobilized pursuant to this section is not released within five (5) business days, (which does not include the day the vehicle was immobilized), the police chief shall require the vehicle to be removed or cause it to be removed and towed to any garage in the city in accordance with the impoundment provisions of Section 10.12.160 of this title.

~~C.B:~~ Authorized. When the ~~city clerk and/or the~~ police chief finds a vehicle parked in violation of the provisions of this code, such person may ~~attach or affix a boot to~~ immobilize the vehicle or cause the same to be done **if that vehicle appears on the scofflaw list**. ~~A fifty dollar (\$50.00) fee will be imposed for each vehicle which has a boot attached and a five dollar per day penalty will be assessed for each additional day the vehicle remains illegally parked.~~

~~C. Removal. Any boot attached or affixed to a vehicle pursuant to the provisions of this section shall remain so attached or affixed until the fine or penalty imposed for the violation of the section of this code pertaining to parking violations has been satisfied. Upon satisfaction, the city clerk and/or police chief shall issue an order authorizing the removal of the boot.~~

D. Alternate Procedure. The provisions of this section are declared to provide an alternative manner for the enforcement of the provisions of this code pertaining to parking violations and shall not preclude impoundment of the vehicle parked as authorized under Section 10.12.160 or any other method of enforcing the parking ordinances.

E. Penalty. Any person found guilty of tampering with an **immobilization device boot** in an attempt to remove or destroy it, is subject to the general penalty provision of this code under Section 1.24.010.

F. Post-Immobilization Review. The registered vehicle owner may seek a post-deprivation review of the immobilization by submitting a written request to the police department parking administration manager within ten (10) days of the placement of the immobilization device and notice on the vehicle, as established by the notice date. The police department parking administration manager shall provide the request for review to the municipal court judge. Upon timely receipt of such written request, the municipal court judge shall, within a reasonable time as established by the court, conduct a review on the issue of whether the immobilization was proper and shall issue a written decision setting forth the reasons on which the decision is based, provided, however, that any previously adjudicated parking infractions that formed the basis of the vehicle's scofflaw status shall not be subject to the review. The person seeking review shall have an opportunity to present evidence on his or her behalf in accordance with requirements established by the court.

Section 3. That various sections of Chapter 10.16, Arrest and Citation Procedure, of Title 10, Vehicles and Traffic, are hereby amended as set out in this ordinance. Sections currently existing in Chapter 10.16 not set out within this ordinance remain unchanged.

10.16.080 Citation on illegally parked vehicles.

Whenever any motor vehicle without a driver is found parked, standing or stopped in violation of any of the restrictions imposed by ordinances of this city or by state law, the officer finding the vehicle shall take its registration number, vehicle identification number or any other information displayed on the vehicle which may identify its owner, and shall conspicuously affix to the vehicle a **civil traffic citation**. **A violation under this section, Chapter(s) 10.52, 10.60 and Section(s) 10.08.010/Wyo. Stat. Section 31-5-512, 10.08.010/Wyo. Stat. Section 31-5-504(a)(iii)(A) and 10.64.020 shall constitute a civil traffic violation, subject to civil sanctions as provided herein.**

A. The citation ~~will~~ **shall** be on a form provided by the ~~city clerk~~ **chief of police** for the driver to answer to the charge against them within five days during the hours and at a place specified in the citation: which shall include the following:

1. The date, time and location of the violation;
2. The state license number and/or vehicle identification number (VIN) of the vehicle unlawfully parked;
3. Reference to the municipal ordinance or code provision violated; and
4. A notice that:
 - a. Within fifteen (15) calendar days after the date that the citation is issued, the stated fine for a violation must be paid and received by the City;
 - b. A request made for a hearing to contest the alleged violation must be made and received by the police department parking administration manager within fifteen (15) days after the date the citation was issued.
 - c. Failure to pay or request a hearing within fifteen (15) calendar days after the date that the citation was issued will result in the entry of a default judgment and assessment of a thirty-dollar (\$30.00) late fee.
 - d. Payment within two (2) business days after the date the citation is issued will cause the stated fine for a violation to be discounted by ten dollars (\$10.00).

B. The citation, or copy thereof, shall constitute prima facie evidence of the parking infraction.

C. The City may contract with a private person or entity for the collection of civil judgments in parking cases. Any costs reasonably related to the collection of civil judgments in parking cases shall be levied against the violator.

10.16.090 Failure to comply with civil parking citation on parked vehicle.

~~If a violator of the restrictions on stopping, standing or parking under the traffic laws or ordinances does not appear in response to a traffic citation affixed to a motor vehicle within five days, the city clerk shall send to the owner of the motor vehicle a notice informing him or her of the violation and warning that in the event the notice is disregarded for five days, the vehicle may be impounded, a boot attached or a warrant of arrest may be issued.~~

A. If the fine indicated on the citation has not been paid within fifteen (15) days after the date of the issuance of the citation and the defendant has not requested a hearing, a default judgment shall be entered against the registered owner of the vehicle in the amount of the fine plus a late fee of thirty dollars (\$30.00). The date of payment for this section shall

be the date that payment is actually received by the police department parking administration manager.

B. The police department parking administration manager shall send a mailed notice of the entry of a default judgment for the parking citation to the registered owner of the vehicle within five (5) business days of the entry of the default judgment.

10.16.100 Presumption in reference to illegal parking.

A. In any ~~prosecution charging proceeding alleging~~ a violation of any law or regulation governing the standing or parking of a vehicle, proof that the particular vehicle described in the complaint was parked in violation of the law or regulation, together with proof that the defendant named in the complaint was at the time of parking the registered owner of the vehicle, shall constitute in evidence a prima facie presumption that the registered owner of the vehicle was the person who parked or placed the vehicle at the point where, and for the time during which, the violation occurred.

B. The foregoing presumption applies only when the procedure as prescribed in Sections **10.16.140, 10.16.150, 10.16.080 and 10.16.090** has been followed.

10.16.140 Request for hearing in parking cases.

The person or persons liable for the parking violation may request a hearing for consideration of the citation by contacting the police department parking administration manager in person, by telephone or mail within fifteen (15) days after the date the citation was issued, payment of court costs of ten dollars (\$10.00), and requesting a hearing to contest the alleged violation. A request for a hearing will be considered received by the City if it is actually received by the police department parking administration manager within fifteen (15) calendar days after the date the citation was issued. A request for a hearing made by telephone will be considered received the day it is made if it is received by a police department employee between the hours of 8:00 a.m. and 5:00 p.m. of any day, except on Saturday, Sunday or a city holiday.

10.16.150 Parking violation hearings and appeal procedures.

A. Civil actions to enforce this chapter may be adjudicated by an administrative hearing officer actively licensed to practice law in the State of Wyoming designated by the mayor.

B. A hearing for a parking violation may be heard by an administrative hearing officer. The administrative hearing officer may make such orders as may be necessary and proper to dispose of such cases, including reduction or increase of fine amounts notwithstanding the schedule of fines set forth by the governing body and this section.

C. Any defendant who has been issued a parking citation aggrieved by a decision in a parking violation hearing may seek judicial review in the manner provided by the Wyoming Administrative Procedure Act and the Wyoming Rules of Appellate Procedure.

D. If a defendant, who has been issued a parking citation, fails to request a hearing within fifteen (15) days after the issuance of the citation, the allegations in the citation shall be deemed admitted and the police department parking administration manager shall enter judgment for the City and impose a civil sanction in the amount of the issued citation and any fine increases in accordance with Section 10.16.090(A).

E. If a defendant, who has requested a hearing in accordance with Section 10.16.140, fails to appear at their scheduled hearing, the police department parking administration manager shall enter judgment for the City and impose a civil sanction in the amount of the issued citation and any fine increases in accordance with Section 10.16.090(A).

10.16.160 Operator error.

A. No person receiving a civil citation under this section shall be found liable if they produce the following proof of operator error to the police department parking administration manager within fifteen (15) days of the receipt of the citation:

- 1. Proof of payment for their parking during the time the citation was issued.**

Section 4. That various sections of Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, are hereby amended as set out in this ordinance. Sections currently existing in Chapter 10.52 not set out within this ordinance remain unchanged.

10.52.010 Method of parking.

A. No person shall stand or park a vehicle in the roadway other than parallel with the edge of the roadway, headed in the direction of lawful traffic movement, and with the wheels of the vehicle nearest the curbline on the roadway but within twelve (12) inches of the curb or edge of the roadway, except two- or three-wheeled motor vehicles which may park at an angle to the curb and abutting the curb, provided they do not obstruct traffic movement and except as otherwise provided in this title.

B. No person shall be permitted to back a motor vehicle into a diagonal parking space within city limits.

10.52.020 Prohibited in specified places.

A. Stop, stand or park a vehicle:

- 1. Which is a tractor unit with ten (10) or more wheels and a fifth wheel, with or without a semi-trailer, upon any street or alley in the city, except when such vehicles are in the process of loading or unloading at the site of origin or delivery of shipments; recreational campers and vans may park for the time limits posted.**

Any person found guilty of violating any of the provisions of this chapter may be punished in accordance with the ~~general penalty applicable~~ provisions of **Chapter 10.16** of the Cheyenne City Code.

~~10.52.120 — Diagonal parking permits:~~

~~A. — The governing body may, upon motion duly passed, approve the issuance of diagonal parking permits according to the discretion of the governing body. Permits will be valid for one year and may be renewed annually.~~

~~B. — The city traffic engineer shall forthwith promulgate, and from time to time amend, regulations for diagonal parking which shall be placed on file in the office of the city clerk for public inspection. These regulations shall define criteria for evaluating diagonal parking permits and shall contain reasonable diagonal parking design standards to provide for the safe and efficient operations of public streets and sidewalks.~~

~~C. — Any property owner or group of property owners or any person or group of persons who occupy premises under a written lease for a term of at least one year, whose property or premises is located on a street in the city which, pursuant to the regulations, qualifies for diagonal parking may make application to the city clerk for a diagonal parking permit for spaces on that side of the portion of the street adjoining their property.~~

~~D. — Each application shall be accompanied by an application fee in the sum of fifty dollars (\$50.00), and a sworn statement by the applicant or applicants that written notice of the application has been given to all property owners or tenants of premises on the street in question for a distance of one full block on either side of the applicant's premises. A list of the property owners or tenants referred to in this chapter, together with their addresses and a copy of the written notice, shall be included with the sworn statement.~~

~~E. — Each application for diagonal parking shall be directed to the city traffic engineer, who shall make a recommendation of approval or disapproval to the governing body. In the event that the governing body disapproves an application, the application fee shall be returned to the applicant. In the event that the application is approved, the application fee shall be retained by the city and a diagonal parking permit shall be issued to the applicant by the city clerk.~~

~~F. — Diagonal parking permits may be renewed annually upon approval by the governing body. Renewals will be considered once the holder of the permit has submitted written notice to the city clerk requesting the renewal. Each renewal shall be valid for one year and shall be accompanied by a renewal fee in the sum of fifty dollars (\$50.00).~~

Section 5. That various sections of Chapter 10.60, Parking Limitations, of Title 10, Vehicles and Traffic, are hereby amended as set out in this ordinance. Sections currently existing in Chapter 10.60 not set out within this ordinance remain unchanged.

10.60.010 Signed time limitations.

Vehicles parked in an area where parking is limited by time must move ~~one hundred fifty (150) feet~~ from **the block face** of the vehicle's parked position before the expiration of time indicated on posted signs on any day except Sundays and public holidays, unless otherwise indicated upon any of the streets within the city as designated by the city traffic engineer.

"Block face" is defined as one side of a specific city block where signed time limited parking is available.

10.60.030 Notice of violation.

When a vehicle is found to be in violation of this chapter a notice specifying the violation and amount of the fine will be affixed to the vehicle, or sent to the address indicated by current license plate registration records to the registered owner of the vehicle.

The notice of violation will also indicate the **manner in which the citation may be contested.** ~~time and place of court appearance. The violation(s) may be paid in the manner indicated on the notice in lieu of a court appearance.~~

10.60.040 Fine schedule.

Any such fine imposed pursuant to a notice of violation issued under Section 10.60.030 shall be determined by **resolution of the governing body** ~~the municipal court~~, including any **administrative fees**, and shall be made available to the general public in the form of a fine schedule.

A. Administrative fees shall be factored into the total amount of the fine before any late payment penalties are applied in accordance with Section 10.16.090(A).

B. Court costs of ten dollars (\$10.00) may be assessed against those requesting a hearing in accordance with Section 10.16.140.

Section 6. That various sections of Chapter 10.64, Loading and Unloading, of Title 10, Vehicles and Traffic, are hereby amended as set out in this ordinance. Sections currently existing in Chapter 10.64 not set out within this ordinance remain unchanged.

10.64.010 City traffic engineer to designate curb loading zones.

A. The city traffic engineer is authorized to determine the location of passenger and freight curb loading zones and shall place and maintain appropriate signs indicating the same and stating the hours during which the provisions of this section are applicable.

B. The city traffic engineer shall not hereafter designate or sign any curb loading zone upon special request of any person unless such person makes application for a permit for such zone and for two signs to indicate the ends of each such zone. The **police department parking administration manager** ~~city clerk~~ upon issuing a permit and causing such signs to be issued shall collect from the applicant and deposit in the city treasury a service fee of two hundred fifty dollars

(\$250.00) per year or fraction thereof per space, not to exceed twenty-four (24) feet in length, and for reimbursement of the city for the value thereof in the event of misuse or upon expiration of permit. The **police department parking administration manager city-clerk** shall notify, by certified mail, any applicant whose curb loading permit has not been paid in full and/or when reimbursements to the city are required pursuant to this section. If the permit fee or reimbursement has not been paid within thirty (30) days after notification, the **police department parking administration manager city-clerk** may revoke the curb loading zone permit and establish a parking place in the curb loading zone.

Section 7. This ordinance shall be in full force and effect on March 1, 2020.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Marian J. Orr, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk

Publish: Wyoming Tribune Eagle